

25STCV18020 25STCV18020

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-09-01

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C309%2C09%2F01%2F2026

Source SHA-256: 71401c581e4864e456ce2eb99dbd3de68ca6b5fffc5d5dc39c2e2c86a862d907

Case Number: 25STCV18020 Hearing Date: September 1, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

17

TENTATIVE RULING

NEIL FISCHER

vs.

FORD MOTOR COMPANY, et al.

Case

No.: 25STCV18020

Hearing Date: September 1, 2026

Defendant's

motion for an order for compliance requiring Plaintiffs to appear and comply with initial deposition is GRANTED. The Court awards statutory sanctions in the amount of \$1,500, payable within 60 days.

On 6/23/2025,

Plaintiff Neil Fischer (Plaintiff) initiated this action. On 12/11/2025,

Plaintiff filed a first amended complaint (FAC) against Ford Motor Company and

Auto Nation Ford Valencia (collectively, Defendants) alleging violations of the Song-Beverly Warranty Act.

On

7/31/2026, Defendant moved to compel Plaintiff's compliance pursuant to CCP section 871.26.

Discussion

Defendant

moves for an order for compliance requiring Plaintiffs to appear and comply with the initial deposition under Code of Civil Procedure (CCP) section 871.26, subdivision (c)(1).

The enactment

of Assembly Bill 1755 was codified in Chapter 12 of Title 10 to Part 2 of the Code of Civil Procedure (herein, Chapter 12), which went into effect 1/1/2025. (See CCP § 871.20, et seq.) In passing Assembly Bill 1755, the legislature enacted provisions that require the parties to participate in initial depositions. (CCP §871.26, subd. (c).) The newly enacted provisions are designed to reduce court docket congestion and promote settlement by temporarily staying all discovery (other than the initial disclosure and document exchanges and initial depositions) until an early mediation is completed. (CCP § 871.26, subd. (d).)

In

opposition, Plaintiff's counsel argues that the motion is moot as the relief Ford seeks—Plaintiff's appearance for the initial deposition—has already been secured by agreement, and by Ford's own notice. Plaintiff further contends that he never refused to submit to deposition, but objected to the specific noticed dates due to availability conflicts and remained willing to appear on a mutually agreeable date. Each of Ford's notices set a date unilaterally, without first conferring with Plaintiff's counsel on a mutually convenient date. (Smith Decl. ¶¶ 4, 6, 7.) However, Plaintiff's deposition was properly noticed in 11/5/2025 and July, 2026 (Pisciotta Decl. ¶¶ 3–5), and Plaintiff has still not sat for his deposition.

Based on the

foregoing, Defendant's motion for an order for compliance requiring Plaintiffs to appear and comply with initial deposition is GRANTED. The Court imposes \$1,500

in sanctions at this time.

It is so ordered.

Dated: September
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative.

If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.